

STATE OF NEW YORK

65--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. HEVESI, LAVINE -- read once and referred to the Committee on Children and Families -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law, in relation to the establishment of a statewide supervised visitation initiative to support safe and structured parenting time

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The social services law is amended by adding a new section
2 398-f to read as follows:

3 § 398-f. Supervised visitation to support safe and structured parent-
4 ing time. 1. The legislature finds and declares that professionally
5 supervised visitation programs are often necessary in order to keep
6 families safe, to foster healthy family relationships and to further the
7 best interests of children in family offense, child protective, and
8 custody and visitation proceedings in supreme and family courts. Recog-
9 nizing that a large number of counties have no supervised visitation
10 programs at all and, of those that have such programs, the need far
11 exceeds the availability of the programs, it is the intent of this
12 section to provide state support for the establishment of at least one
13 program in every county that does not have one and, for those counties
14 and cities that have programs, to expand their reach to meet the need.
15 Such programs may be essential in cases involving family violence,
16 mental health, or other cases in which supervision is vital to meet the
17 needs of the parent and/or child.

18 2. Within grant funds appropriated by the state for this purpose, the
19 office of victim services, in consultation with the office for the
20 prevention of domestic violence, shall establish a statewide supervised
21 visitation initiative to support safe and structured parenting time.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 that shall include culturally sensitive services that provide language
2 access for those who need it and that are affordable for those with
3 limited means to pay. The office of victim services shall require each
4 county and New York City to submit annual assessments of the local needs
5 for supervised visitation services, as well as plans for meeting the
6 assessed needs and for collecting data regarding usage and effectiveness
7 of the programs. The submissions shall specify the services to be
8 provided, the estimated number of children and families to be served by
9 the programs, the estimated number of fee waivers and the estimated cost
10 of the programs. The submissions may include plans to contract with
11 private non-profit organizations for services and may include multi-
12 county programs if geographically accessible for families utilizing the
13 programs. The plan for such programs shall be included in the district-
14 wide child welfare services plan pursuant to section four hundred nine-d
15 of this article.

16 3. Such programs shall be made available to comply with supreme and
17 family court temporary and final orders requiring such supervision as a
18 condition of access to children and shall include provisions for waiver
19 of fees for users of such programs who cannot afford to pay. Where
20 directed by the court, the programs shall provide reports to the court
21 at the end of the visitation period and as the court otherwise directs.

22 4. The office of victim services shall promulgate regulations neces-
23 sary to implement this section and shall submit a report to the legisla-
24 ture and governor one year after the effective date of this section and
25 annually thereafter. The report shall provide data regarding the
26 programs in each county, shall evaluate the effectiveness of the state-
27 wide initiative in meeting local needs and shall include recommendations
28 for enhancing the initiative.

29 § 2. This act shall take effect on the one hundred eightieth day after
30 it shall have become a law.